

dew theory

S K I N — C A R E

Website Legal & Claims Audit

Legal Report

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DOCUMENT DT-REPORT-001

EFFECTIVE DATE · UPON APPROVAL AND PUBLICATION

LAST UPDATED · AUGUST 15, 2026

DEWTHEORYCO.COM

ATTORNEY REVIEW DRAFT
NOT FOR CONSUMER PUBLICATION

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STATUS
ATTORNEY REVIEW DRAFT

PUBLICATION / USE
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Severity. P0 = launch blocker or material legal/consumer risk. P1 = significant remediation recommended before broader launch. P2 = moderate cleanup. P3 = minor improvement. "P0" in this audit is an operational risk classification, not a legal conclusion that a violation has occurred.

1. Executive findings

The public site presents a polished storefront while several material operational/legal facts are expressly unfinished. The most important mismatch is that service pricing and "Book" calls to action are visible even though the site itself describes the menu as a working draft, booking availability as mock, deposits/cancellation terms as unset, Stripe as unconfigured for production in some flows, and practitioner license details as awaiting launch confirmation. Those items should remain fail-closed until verified.

The second high-risk area is product claim language that can move a cosmetic toward drug intended use. Claims such as "helps limit acne-causing bacteria," "anti-inflammatory," "reduces acne-related redness," "tyrosinase inhibitor" and "cellular support" require immediate review against the actual manufacturer's authorized label and federal cosmetic/drug rules. A disclaimer does not cure a disease or structure/function intended-use claim.

The third high-risk area is privacy/health-data consent. The virtual consultation contemplates facial photos plus sensitive intake information but uses one bundled checkbox for consultation terms and privacy. If Dew Theory collects consumer health data from residents covered by specialized state laws, separate notice/consent and rights workflows may be required.

2. Detailed issue register

CLA-001 — Practitioner credential representation

Page/URL: About; Studio; service-related pages

Current wording: “licensed aesthetician” and “State-licensed aesthetician working in medical-adjacent skincare”; exact board/license number stated as to be confirmed for launch.

Category: Professional credentials / licensing

Severity: P0

Concern: The website makes a current licensure representation while simultaneously acknowledging the published credential detail is not verified. The operating state, active status, exact credential and facility license were not independently established in the audit.

Authority: Applicable state cosmetology/aesthetician statute, administrative rules and board; FTC Act Section 5 for truthful material representations.

Recommended replacement: Until verification, use neutral biography language that does not make an unverified current license/status claim, or publish the accurate credential/jurisdiction after verification. Remove “medical-adjacent” unless counsel is comfortable it is nonmisleading in context.

Urgent before launch: Yes, before paid aesthetic services.

Substantiation needed: State-board verification, license number/status, credential scope, facility establishment license.

CLA-002 — Draft service menu presented with firm prices

Page/URL: Services; homepage service cards

Current wording: The Services page calls the menu a “working draft” and “polished prose, not confirmed business facts,” while displaying named services, durations and dollar prices.

Category: Pricing / service offer

Severity: P0

Concern: Consumers can reasonably read a polished service page as an actual offer even when fine print says the facts are draft. The business has not approved the service menu, durations or prices.

Authority: FTC Act Section 5; applicable state unfair/deceptive practices law.

Recommended replacement: Either hide paid booking/pricing until the menu is final or clearly label the entire service area “Preview — not currently bookable,” remove transactional CTAs, and publish final prices only after approval.

Urgent before launch: Yes.

Substantiation needed: Approved price/service matrix and tax treatment.

CLA-003 — Mock booking schedule

Page/URL: /book

Current wording: Availability is a mock schedule until Google Calendar credentials are connected.

Category: Booking / operational truth

Severity: P0

Concern: A consumer should not be led into a transactional booking flow that cannot create a reliable production appointment.

Authority: FTC Act Section 5; state consumer-protection law.

Recommended replacement: Disable payment and final booking until production calendar connectivity, availability, confirmation and cancellation logic are verified. Show a clearly nontransactional interest/waitlist

flow if desired.

Urgent before launch: Yes.

Substantiation needed: Production booking-system test evidence.

CLA-004 — Payment processor described as conditional/unconfigured

Page/URL: Privacy; virtual consultation; checkout-related flow

Current wording: Stripe is to be used when configured; local mock mode is development-only and not live payment.

Category: Payments / checkout

Severity: P0

Concern: The production payment processor, merchant of record and final payment behavior are not verified.

Authority: FTC/state UDAP; card-network/payment contract obligations; privacy notice accuracy.

Recommended replacement: Keep any charge-capable path fail-closed until live credentials, webhook/ idempotency, refund handling, merchant identity, security and privacy disclosures are verified.

Urgent before launch: Yes.

Substantiation needed: End-to-end production payment test and account configuration.

CLA-005 — Return terms not finalized

Page/URL: FAQ; Returns

Current wording: Return window and nonreturnable list are not set; the site says it does not invent a 30-day guarantee.

Category: Returns / refunds

Severity: P0 before merchandise transactions

Concern: Consumers need know the actual return/refund rules before purchase; the business must not improvise after the sale.

Authority: FTC/state UDAP; state retail/consumer law.

Recommended replacement: Approve and publish a specific return policy before live fulfillment. Distinguish unopened, opened/hygiene-sensitive, damaged/incorrect/defective and adverse-reaction cases.

Urgent before launch: Yes.

Substantiation needed: Business policy and operational return address/workflow.

CLA-006 — Shipping timing and fulfillment origin unconfirmed

Page/URL: Shipping; FAQ

Current wording: \$7 flat below \$49 and free shipping at \$49+ pre-discount are stated; carrier, transit timing, ship-from location and partial-shipment rules are unconfirmed; supplier PO/drop-ship may be used depending on account configuration.

Category: Shipping / fulfillment

Severity: P1; becomes P0 if orders are accepted without a reasonable shipping basis

Concern: The FTC Mail, Internet, or Telephone Order Merchandise Rule requires a reasonable basis for the promised shipment time; if no time is stated, a default rule applies.

Authority: 16 C.F.R. Part 435 (Mail/Internet Order Rule).

Recommended replacement: State only verified processing/shipment estimates and build delay-consent/ cancellation/refund handling consistent with the Rule. Verify whether Dew Theory or a supplier fulfills each SKU.

Urgent before launch: Yes for operational configuration.

Substantiation needed: Fulfillment SOP, carrier/service data and inventory/supplier SLA.

CLA-007 — “Helps limit acne-causing bacteria”

Page/URL: Green Tea Citrus Cleanser product page

Current wording: “helps limit acne-causing bacteria”

Category: FDA intended use / acne / antimicrobial claim

Severity: P0

Concern: Acne-treatment and antimicrobial disease-related language can establish drug intended use for a product marketed as a cosmetic unless the actual product is lawfully marketed/labeled for that drug use.

Authority: FD&C Act; FDA cosmetic-vs-drug intended-use guidance; FTC substantiation.

Recommended replacement: Use cosmetic appearance/cleansing language that is supported by the manufacturer's authorized copy, e.g., “cleanses excess oil and surface impurities without overclaiming a therapeutic antibacterial effect.” Final wording must track the actual Skin Script product labeling.

Urgent before launch: Yes.

Substantiation needed: Manufacturer current label/authorized claims and regulatory status.

CLA-008 — “Anti-inflammatory” ingredient/service language

Page/URL: Green Tea Citrus Cleanser / ingredient copy

Current wording: Wild Cherry Bark described as “anti-inflammatory”; related copy says it “calms redness.”

Category: Drug-like/therapeutic claim

Severity: P0/P1

Concern: “Anti-inflammatory” is a physiological/therapeutic claim. “Calms the appearance of redness” can be lower risk if truthful and cosmetic, but still requires substantiation.

Authority: FD&C Act intended-use doctrine; FTC substantiation.

Recommended replacement: “Helps soothe the appearance of temporary redness” only if supported and consistent with manufacturer copy; remove “anti-inflammatory” pending regulatory review.

Urgent before launch: Yes for “anti-inflammatory.”

Substantiation needed: Product formula/ingredient evidence and authorized label copy.

CLA-009 — “Reduces acne-related redness”

Page/URL: Mandelic Brightening Serum product copy

Current wording: “reduces acne-related redness”

Category: Acne/drug intended use

Severity: P0

Concern: Tying efficacy to acne can imply treatment of a disease condition.

Authority: FD&C Act; FDA acne-treatment status; FTC substantiation.

Recommended replacement: Use non-disease cosmetic language about the appearance of uneven tone/redness only if supported by manufacturer labeling.

Urgent before launch: Yes.

Substantiation needed: Manufacturer label/claim dossier.

CLA-010 — “Tyrosinase inhibitor” / “cellular support”

Page/URL: Mandelic Brightening Serum product copy

Current wording: Ingredient/effect language includes “Tyrosinase inhibitor” and “cellular support.”

Category: Structure/function / physiological mechanism

Severity: P1

Concern: Mechanistic claims about enzyme inhibition or cellular effects can imply alteration of body structure/

function and require careful product-specific regulatory analysis.

Authority: FD&C Act intended-use doctrine; FTC substantiation.

Recommended replacement: Prefer substantiated appearance claims such as “helps improve the look of uneven tone” unless the marketed product has a lawful basis for stronger wording.

Urgent before launch: Strongly recommended.

Substantiation needed: Manufacturer claims, formula evidence and counsel review.

CLA-011 — “Regulates oil” / “professional-grade actives”

Page/URL: Shop/product pages/homepage

Current wording: “regulates oil”; “professional-grade” / “professional actives.”

Category: Efficacy / implied superiority

Severity: P1/P2

Concern: “Regulates” can suggest physiological control; “professional-grade” has no universal federal definition and can imply objective superiority if presented as fact.

Authority: FTC Act substantiation and deception standards.

Recommended replacement: “Helps reduce the appearance of excess oil” if supported. Qualify “professional” as brand/distribution context (e.g., “Skin Script professional skincare”) rather than unsupported scientific superiority.

Urgent before launch: P1 wording cleanup.

Substantiation needed: Manufacturer evidence and basis for superiority implication.

CLA-012 — SPF 30 sunscreen product

Page/URL: Shop / Sheer Protection SPF30

Current wording: “SPF30” / sun-protection product.

Category: OTC drug / sunscreen

Severity: P1

Concern: Sunscreen is regulated as an OTC drug in the United States. Dew Theory should reproduce only truthful, current label claims/directions/warnings and should not alter Drug Facts or imply unsupported protection.

Authority: FD&C Act; FDA OTC sunscreen requirements/guidance.

Recommended replacement: Use the exact current product name/SPF and manufacturer-authorized drug labeling; link or display required directions/warnings where appropriate.

Urgent before launch: Verify before sale.

Substantiation needed: Current physical/official label, expiration/lot handling, reseller authorization/provenance.

CLA-013 — “Plumps” lip-treatment claim

Page/URL: Lip Treatment product page

Current wording: “plumps and hydrates”

Category: Cosmetic efficacy

Severity: P2

Concern: “Plumps” may be a permissible appearance claim but needs support and should not imply structural augmentation.

Authority: FTC substantiation; FD&C intended use.

Recommended replacement: “helps lips look smoother and more hydrated” or manufacturer-authorized

"plumping appearance" language if substantiated.

Urgent before launch: No, but revise with product review.

Substantiation needed: Manufacturer claim basis.

CLA-014 — "Preps skin to absorb"

Page/URL: Cucumber Hydration Toner product page

Current wording: "preps skin to absorb"

Category: Efficacy/mechanism

Severity: P2

Concern: May imply a measurable penetration enhancement.

Authority: FTC substantiation.

Recommended replacement: "prepares skin for the next steps in your routine" unless absorption enhancement is supported.

Urgent before launch: No.

Substantiation needed: Manufacturer copy/study if stronger claim retained.

CLA-015 — "Clinical formulations"

Page/URL: Homepage hero

Current wording: "Clinical formulations, finished by hand."

Category: Implied clinical substantiation

Severity: P1

Concern: "Clinical" can imply professional/clinical testing or medical-grade evidence depending on context.

Authority: FTC deception/substantiation.

Recommended replacement: Retain only if Dew Theory can document what "clinical" means for the products sold; otherwise use nontechnical premium-positioning language that does not imply clinical validation.

Urgent before launch: Recommended.

Substantiation needed: Manufacturer testing or a clearly defined nonmisleading basis.

CLA-016 — "Medical-adjacent skincare"

Page/URL: About / Studio

Current wording: "working in medical-adjacent skincare"

Category: Professional scope / implied medical affiliation

Severity: P1

Concern: Could suggest medical supervision, medical practice or a healthcare affiliation not established by the public record.

Authority: FTC/state UDAP; applicable professional-practice law.

Recommended replacement: Describe actual setting and credential precisely once verified; avoid "medical-adjacent" unless the factual relationship and legal scope are clear.

Urgent before launch: Yes before services.

Substantiation needed: Actual practice setting/affiliation and state scope.

CLA-017 — Bundled virtual-consultation/privacy checkbox

Page/URL: Virtual Consultation

Current wording: One checkbox combines understanding of aesthetic guidance with agreement to consultation terms and privacy practices for intake/photos.

Category: Privacy / consent / consumer health data

Severity: P0

Concern: Bundling service terms, sensitive intake/photo authorization and potentially statutory consumer-health-data consent reduces specificity and can be insufficient where separate consent is required. Marketing use also must remain separate.

Authority: Washington My Health My Data Act where applicable; other sensitive-data laws; FTC dark-pattern principles.

Recommended replacement: Separate required service terms, required service-use intake/photo authorization, any statutory health-data consent, and optional marketing/photo consent.

Urgent before intake launch: Yes.

Substantiation needed: Final data-flow/geography analysis.

CLA-018 — “Teens” marketing without age-gated treatment rules

Page/URL: Homepage / skin routines / service flows

Current wording: “teens to 60 & beyond.”

Category: Minors / privacy / services

Severity: P0 for minor intake/services; P1 for general product marketing

Concern: Marketing to teens is not inherently prohibited, but the site lacks verified minimum treatment ages, guardian-consent rules and an under-13 online-data handling design.

Authority: COPPA for under-13 online personal information; applicable state minor-consent and professional-scope law.

Recommended replacement: Add age screening before intake/booking; block under-13 online collection absent COPPA-compliant parental consent; deploy guardian flows only after state-specific review.

Urgent before minor service/intake launch: Yes.

Substantiation needed: Operating state and procedure-age rules.

CLA-019 — Current Privacy page is expressly provisional

Page/URL: Privacy

Current wording: Full legal terms, retention schedules and a published privacy contact will be confirmed before full launch.

Category: Privacy notice

Severity: P0 before collecting production order/intake data

Concern: The existing page is a transparency note, not a complete production privacy notice.

Authority: CalOPPA where applicable; state privacy/consumer-health-data laws; FTC privacy representations.

Recommended replacement: Publish the completed Privacy Policy with verified operator/contact, vendors/data flows, retention framework and applicable rights workflow before production collection.

Urgent before launch: Yes.

Substantiation needed: Legal entity, contacts, vendor inventory, retention and coverage analysis.

CLA-020 — Legal footer is incomplete

Page/URL: Global footer

Current wording: Links to Privacy, Shipping and Returns only.

Category: Legal navigation / accessibility

Severity: P1; P0 for required notices if flow launches

Concern: Terms, booking/cancellation, aesthetic disclaimer, accessibility, cookies and conditional health-data notice are not persistently discoverable.

Authority: Contract notice/assent principles; specific privacy laws; consumer-protection transparency.
Recommended replacement: Add permanent links identified in the Implementation Guide, while showing conditional/pre-launch pages only when applicable.
Urgent before launch: Yes for relevant flows.
Substantiation needed: Final route registry.

CLA-021 — Seeded DEW15 promotion described as placeholder

Page/URL: FAQ / promo behavior
Current wording: DEW15 is a placeholder percentage until launch economics are finalized.
Category: Promotions / pricing
Severity: P0 if code is consumer-usable
Concern: A live promotional code must have a real discount value, scope, expiration/limit rules and truthful savings representation.
Authority: FTC/state UDAP pricing and promotion principles.
Recommended replacement: Disable the seeded code in production until economics and terms are approved; then publish the real discount and exclusions.
Urgent before transactions: Yes.
Substantiation needed: Approved promotion rules and automated tests.

CLA-022 — Testimonials and before/after content controls

Page/URL: Site-wide / future marketing
Current wording: No material volume of testimonial/before-after advertising was identified in the audited public pages, but the business contemplates photo/testimonial use.
Category: Endorsements / reviews / before-after
Severity: P1 future control
Concern: Future endorsements must disclose material connections and may not misrepresent experience; before/after imagery should not be manipulated in a way that misleads consumers about results. The FTC's consumer review/testimonial rule also prohibits specified deceptive review practices.
Authority: FTC Endorsement Guides; FTC Consumer Reviews and Testimonials Rule; FTC Act.
Recommended replacement/process: Maintain written testimonial/photo release, incentive disclosure, no-fake-review policy, image-editing standard and substantiation file for any efficacy implication.
Urgent before campaign launch: Yes.
Substantiation needed: Release and review-moderation SOP.

CLA-023 — Skin Script affiliation/provenance

Page/URL: Homepage / Shop / FAQ
Current wording: "Professional Skin Script actives"; products identified as Skin Script.
Category: Trademark/affiliation/product provenance
Severity: P1
Concern: Dew Theory should accurately describe reseller/retailer status and avoid implying endorsement, partnership or manufacturer status beyond the actual relationship.
Authority: FTC deception; trademark/contract principles.
Recommended replacement: "Skin Script products available through Dew Theory" or manufacturer-approved reseller language that precisely reflects the relationship.
Urgent before scale: Recommended.
Substantiation needed: Wholesale/reseller account terms, invoices and authorized marketing assets.

CLA-024 — Wholesale x2 pricing logic described publicly

Page/URL: FAQ

Current wording: Product price may follow “wholesale x2” unless sticker price is confirmed.

Category: Pricing governance

Severity: P1

Concern: Internal pricing logic should not substitute for a verified consumer price, especially if manufacturer MSRP/sticker values change. Checkout must use the displayed final consumer price and authoritative SKU record.

Authority: FTC/state pricing deception principles.

Recommended replacement: Use a canonical SKU price table with approved MSRP/sale price; remove development pricing commentary from the consumer FAQ.

Urgent before transactions: Yes.

Substantiation needed: Approved SKU catalog.

3. State professional-scope conditional review

The actual state of practice was not verifiable from the public record reviewed. Therefore this audit does not conclude that chemical peels, dermaplaning or extractions are within Dew Theory's current credential. If Florida is the intended operating state, the Florida Board of Cosmetology/DBPR statutes and current rules must be checked against the exact credential, establishment license, products, peel depth/strength and technique before offering those services. The same state-specific method applies if Dew Theory operates elsewhere.

4. Substantiation file required

Before launch, Dew Theory should maintain a claim dossier for each SKU and service containing the current manufacturer label/INCI/Drug Facts where applicable, authorized reseller copy, test/support files for material efficacy claims, approved website copy, version/date and counsel or compliance disposition. Higher-risk claims should not remain live merely because similar wording appears elsewhere on the internet.

5. Priority remediation sequence

1. **P0:** verify legal entity/contact, practitioner/facility license/scope, final service menu, booking/payment, returns, fulfillment and sensitive-data consent; fail-close transactions until complete.
2. **P0:** remove or rewrite acne/antibacterial/anti-inflammatory disease or physiological product claims unless the actual product has a lawful drug basis and exact compliant labeling.
3. **P0:** replace bundled virtual-consultation consent and add age/guardian gates before sensitive intake.
4. **P1:** verify sunscreen labeling, “clinical/professional/medical-adjacent” representations, Skin Script relationship and product-price source of truth.
5. **P1/P2:** deploy the complete legal footer, accessibility support, cookie inventory and claim governance.

6. Source note

Primary legal authorities and the audited website pages used for this report are cataloged in DEW_THEORY_LEGAL_RESEARCH_SOURCE_REGISTER.md, with access date August 15, 2026.